

1 ENGROSSED SENATE
2 BILL NO. 1232

By: Coleman of the Senate

3 and

4 Dempsey of the House

5
6 An Act relating to crimes and punishments; amending
7 Section 13, Chapter 366, O.S.L. 2024, as amended by
8 Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp.
9 2025, Section 20M), which relates to Class C2
10 offenses; adding certain offense; conforming
11 statutory references; amending 21 O.S. 2021, Section
12 1727, as amended by Section 455, Chapter 486, O.S.L.
13 2025 (21 O.S. Supp. 2025, Section 1727), which
14 relates to copper theft; creating felony offense;
15 updating statutory language; updating statutory
16 reference; and providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY Section 13, Chapter 366, O.S.L.
19 2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S.
20 Supp. 2025, Section 20M), is amended to read as follows:

21 Section 20M. A. ~~Upon the effective date of this act~~ On or
22 after January 1, 2026, Class C2 shall include the following criminal
23 offenses:

24 1. Theft of anhydrous equipment, as provided for in subsection
B of Section 11-10 of Title 2 of the Oklahoma Statutes;

1 2. Branding, misbranding, marking, or mismarking any domestic
2 animal with intent to defraud, as provided for in Section 268 of
3 Title 4 of the Oklahoma Statutes;

4 3. Injuring, destroying, or attempting to injure or destroy any
5 pipeline transportation system, as provided for in subsection C of
6 Section 6.1 of Title 17 of the Oklahoma Statutes;

7 4. Embezzlement by a county treasurer or other officer, as
8 provided for in Section 641 of Title 19 of the Oklahoma Statutes;

9 5. Giving or offering any bribe to an executive officer, as
10 provided for in Section 265 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 6. Receiving or agreeing to receive a bribe by an executive
13 officer or person elected or appointed to an executive office, as
14 provided for in Section 266 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 7. Entry into a restricted area of a building or grounds using
17 or carrying a deadly or dangerous weapon or firearm or engaging in
18 acts of violence that result in great bodily injury, as provided for
19 in paragraph 1 of subsection B of Section 282 of ~~Title 21 of the~~
20 ~~Oklahoma Statutes~~ this title;

21 8. Forcefully or fraudulently preventing the Legislature from
22 meeting or organizing, as provided for in Section 301 of ~~Title 21 of~~
23 ~~the Oklahoma Statutes~~ this title;

1 9. Forcefully or fraudulently compelling or attempting to
2 compel the Legislature to adjourn or disperse, as provided for in
3 Section 303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 10. Compelling or attempting to compel either house of the
5 Legislature to pass, amend, or reject any bill or resolution, grant
6 or refuse any petition, or to perform or omit to perform any other
7 official act, as provided for in Section 305 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 11. Offering to give a bribe to any member of the Legislature
10 in order to influence the member in giving or withholding a vote, as
11 provided for in Section 308 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 12. Asking, receiving, or agreeing to receive any bribe by a
14 member of the Legislature, as provided for in Section 309 of ~~Title~~
15 ~~21 of the Oklahoma Statutes~~ this title;

16 13. Entering a fort, magazine, arsenal, armory, arsenal yard,
17 or encampment and seizing or taking away arms, ammunition, military
18 stores, or supplies belonging to the state, as provided for in
19 Section 350 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 14. Carrying, causing to be carried, or publicly displaying any
21 red flag or other emblem or banner indicating disloyalty to the
22 ~~Government~~ government of the United States, as provided for in
23 Section 374 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 15. Bribery by a fiduciary, as provided for in subsection A of
2 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 16. Bribery of a fiduciary, as provided for in subsection B of
4 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 17. Commercial bribery of an insured depository institution or
6 credit union, as provided in Section 380.1 of ~~Title 21 of the~~
7 ~~Oklahoma Statutes~~ this title;

8 18. Accepting or requesting a bribe by public officers or
9 employees of this state, as provided for in Section 382 of ~~Title 21~~
10 ~~of the Oklahoma Statutes~~ this title;

11 19. Offering or giving a bribe to any judicial officer, as
12 provided for in Section 383 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 20. Attempting to influence a juror, as provided for in Section
15 388 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 21. Conspiracy to commit a felony, as provided for in
17 subsection C of Section 421 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 22. Conspiring to commit any act against the peace of the state
20 by two or more persons outside of the state, as provided for in
21 Section 422 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 23. Conspiring to commit any act against the state by two or
23 more persons, as provided for in Section 424 of ~~Title 21 of the~~
24 ~~Oklahoma Statutes~~ this title;

1 24. Attempting to avoid a roadblock by failing to stop, passing
2 by or through such roadblock without permission, as provided for in
3 Section 540B of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 25. Fraudulently producing an infant in order to intercept the
5 inheritance or distribution of any personal estate or real estate,
6 as provided for in Section 578 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 26. Maiming by inflicting upon ~~one's self~~ oneself any disabling
9 injury to escape any legal duty, as provided for in Section 752 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title;

11 27. Financial exploitation of an elderly or disabled adult with
12 funds, assets, or property valued at One Hundred Thousand Dollars
13 (\$100,000.00) or less, as provided for in paragraph 2 of subsection
14 B of Section 843.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 28. Conducting gambling games, as provided for in Section 941
16 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 29. Using a house, room, or place to conduct gambling games, as
18 provided for in Section 946 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 30. Engaging or participating in illegal gambling games by a
21 public officer, as provided for in Section 948 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

23 31. Commercial gambling, as provided for in Section 982 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 32. Letting premises for the purpose of betting on races or
2 receiving, registering, recording, or forwarding any money or thing
3 of value to a racetrack for betting purposes, as provided for in
4 paragraphs 2 through 6 of subsection A of Section 991 of ~~Title 21 of~~
5 ~~the Oklahoma Statutes~~ this title;

6 33. Using the ~~terms~~ term "prize" or "gift" in a manner that is
7 untrue or misleading, as provided for in Section 996.3 of ~~Title 21~~
8 ~~of the Oklahoma Statutes~~ this title;

9 34. Advocating criminal syndicalism, sabotage, or the
10 necessity, propriety, or expediency of doing any act of physical
11 violence or unlawful act as a means of accomplishing any industrial
12 or political ends, change, or revolution, as provided for in
13 subsection A of Section 1327 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 35. Arson in the fourth degree by attempting to set fire to or
16 burn any building or property, as provided for in subsection A of
17 Section 1404 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 36. Delivering to another any merchandise for which any bill of
19 lading, receipt, or voucher has been issued and the value of the
20 property is Fifteen Thousand Dollars (\$15,000.00) or more, as
21 provided for in paragraph 4 of Section 1416 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

23 37. Burglary in the second degree by breaking and entering into
24 any commercial building or by breaking and entering into a coin-

1 operated or vending machine, as provided for in subsection A of
2 Section 1435 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 38. Embezzlement of property valued at Fifteen Thousand Dollars
4 (\$15,000.00) or more, as provided for in paragraph 4 of subsection B
5 of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 39. Embezzlement by a county or state officer, as provided for
7 in subsection C of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~
8 this title;

9 40. False personation of another, as provided for in Section
10 1531 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 41. Receiving money or property intended for another with a
12 value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided
13 for in paragraph 4 of Section 1532 of ~~Title 21 of the Oklahoma~~
14 ~~Statutes~~ this title;

15 42. Use of a motor vehicle or motor-driven cycle for the
16 purpose of falsely impersonating a law enforcement officer which
17 causes another person to be injured, defrauded, harassed, vexed, or
18 annoyed, as provided for in paragraph 2 of subsection F of Section
19 1533 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 43. Obtaining, attempting to obtain, or presenting to a
21 financial institution personal, financial, or other information of
22 another person, as provided for in Section 1533.2 of ~~Title 21 of the~~
23 ~~Oklahoma Statutes~~ this title;

1 44. Obtaining property by trick, deception, or by means of a
2 false or bogus check and the property value is Fifteen Thousand
3 Dollars (\$15,000.00) or more, as provided for in paragraph 3 of
4 subsection A of Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~
5 this title;

6 45. Making, drawing, uttering, or delivering two or more false
7 or bogus checks and the value is Fifteen Thousand Dollars
8 (\$15,000.00) or more, as provided for in paragraph 3 of subsection A
9 of Section 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 46. Selling, exchanging, or delivering any forged or
11 counterfeited promissory note, check, bill, draft, or other evidence
12 of debt knowing the same is forged or counterfeited and the value of
13 the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
14 provided for in paragraph 4 of subsection A of Section 1577 of ~~Title~~
15 ~~21 of the Oklahoma Statutes~~ this title;

16 47. Possession of any forged, altered, or counterfeited
17 negotiable note, bill, draft, or other evidence of debt and the
18 value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or
19 more, as provided for in paragraph 4 of subsection A of Section 1578
20 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 48. Possession of any forged or counterfeited instrument with
22 intent to injure or defraud and the value of the instrument is
23 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
24

1 paragraph 4 of subsection A of Section 1579 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 49. Uttering or publishing as true any forged, altered, or
4 counterfeited instrument or counterfeit coins and the value of the
5 instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
6 provided for in paragraph 4 of subsection A of Section 1592 of ~~Title~~
7 ~~21 of the Oklahoma Statutes~~ this title;

8 50. Exhibiting false, forged, or altered books, papers,
9 vouchers, security, or other instruments of evidence to any public
10 officer or board with intent to deceive, as provided for in Section
11 1632 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 51. Destroying, altering, mutilating, or falsifying any books,
13 papers, writing, or securities belonging to a corporation or
14 association with intent to defraud, as provided for in Section 1635
15 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 52. Larceny of lost property and the value of the property is
17 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
18 paragraph 4 of Section 1702 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 53. Grand larceny and the value of the property is Fifteen
21 Thousand Dollars (\$15,000.00) or more, as provided for in paragraph
22 4 of subsection A of Section 1705 of ~~Title 21 of the Oklahoma~~
23 ~~Statutes~~ this title;

1 54. Grand larceny in any dwelling house or vessel, as provided
2 for in Section 1707 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 55. Larceny of any evidence of debt or other written
4 instrument, as provided for in Section 1709 of ~~Title 21 of the~~
5 ~~Oklahoma Statutes~~ this title;

6 56. Buying or receiving any property that has been stolen,
7 embezzled, or obtained by false pretense or robbery and has a value
8 of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
9 paragraph 3 of subsection A of Section 1713 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 57. Buying or receiving any construction equipment or farm
12 equipment that has been stolen, embezzled, or obtained by false
13 pretense or robbery, as provided for in Section 1713.1 of ~~Title 21~~
14 ~~of the Oklahoma Statutes~~ this title;

15 58. Bringing into this state the stolen property of another
16 obtained from another state or country, as provided for in Section
17 1715 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 59. Larceny of livestock or implement of husbandry, as provided
19 for in subsection A of Section 1716 of ~~Title 21 of the Oklahoma~~
20 ~~Statutes~~ this title;

21 60. Larceny of a dog, as provided for in Section 1718 of ~~Title~~
22 ~~21 of the Oklahoma Statutes~~ this title;

23 61. Grand larceny of exotic livestock, as provided for in
24 Section 1719.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 62. Larceny of an aircraft, automobile, construction equipment,
2 or farm equipment, valued at Fifty Thousand Dollars (\$50,000.00) or
3 more, as provided for in Section 1720 of ~~Title 21 of the Oklahoma~~
4 ~~Statutes~~ this title;

5 63. Tapping or drilling into a pipeline, as provided for in
6 Section 1721 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7 64. Taking any crude oil or gasoline from any pipe, pipeline,
8 tank, tank car, or other receptacle or container and the value of
9 such product is One Thousand Dollars (\$1,000.00) or more, as
10 provided for in paragraph 2 of Section 1722 of ~~Title 21 of the~~
11 ~~Oklahoma Statutes~~ this title;

12 65. Larceny of merchandise from a retailer or wholesaler and
13 the value of the goods is Fifteen Thousand Dollars (\$15,000.00) or
14 more, as provided for in paragraph 5 of subsection A of Section 1731
15 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 66. Larceny of trade secrets that is valued at Fifteen Thousand
17 Dollars (\$15,000.00) or more, as provided for in Section 1732 of
18 ~~Title 21 of the Oklahoma Statutes~~ this title;

19 67. Procuring, soliciting, selling, or receiving by fraudulent,
20 deceptive, or false means two to ten telephone records without
21 authorization, as provided for in paragraph 2 of subsection B of
22 Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 68. Masking, altering, or removing any locomotive or railway
2 car lights or signals, as provided for in Section 1778 of ~~Title 21~~
3 ~~of the Oklahoma Statutes~~ this title;

4 69. Mutilating, tearing, defacing, obliterating, or destroying
5 any written instrument, value of Fifteen Thousand Dollars
6 (\$15,000.00) or more, as provided for in Section 1779 of ~~Title 21 of~~
7 ~~the Oklahoma Statutes~~ this title;

8 70. Violations of the Oklahoma Computer Crimes Act, as provided
9 for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A of Section
10 1953 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 71. Entering with intent to steal copper, or any item that is
12 known or reasonably should be known as ordinarily used by, belonging
13 to, or identified with markings indicating ownership by a telephone,
14 telegraph, Internet, broadcast, or wireless communication company
15 that results in damages of One Hundred Thousand Dollars
16 (\$100,000.00) or more, as provided for in subsection B of Section
17 1727 of this title;

18 ~~71.~~ 72. Contracting the sale of rights arising from a criminal
19 act without providing for the forfeiture of the proceeds, as
20 provided for in subsection A of Section 17 of Title 22 of the
21 Oklahoma Statutes;

22 ~~72.~~ 73. Violating any of the provisions of the Oklahoma Clean
23 Air Act knowing that the violation places others in danger of death
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1 or serious bodily injury, as provided for in subsection B of Section
2 2-5-116 of Title 27A of the Oklahoma Statutes;

3 ~~73.~~ 74. Violating any of the provisions of the Oklahoma
4 Pollutant Discharge Elimination System Act knowing that the
5 violation places others in imminent danger of death or serious
6 bodily injury, as provided for in subparagraph a of paragraph 3 of
7 subsection G of Section 2-6-206 of Title 27A of the Oklahoma
8 Statutes;

9 ~~74.~~ 75. Soliciting or accepting any bribe or money by a game
10 warden in connection with the performance of his or her duties as a
11 game warden, as provided for in subsection E of Section 3-201 of
12 Title 29 of the Oklahoma Statutes;

13 ~~75.~~ 76. Taking or enticing away an incapacitated or partially
14 incapacitated person or person for whom a guardian has been
15 appointed without consent of the guardian, as provided for in
16 Section 4-904 of Title 30 of the Oklahoma Statutes;

17 ~~76.~~ 77. Violating any of the provisions of the Viatical
18 Settlements Act of 2008 if the value of the viatical settlement
19 contract is more than Two Thousand Five Hundred Dollars (\$2,500.00)
20 but not more than Thirty-five Thousand Dollars (\$35,000.00), as
21 provided for in paragraph 2 of subsection F of Section 4055.14 of
22 Title 36 of the Oklahoma Statutes;

23 ~~77.~~ 78. Embezzlement of certain funds held in trust, value of
24 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in

1 ~~paragraph (2)~~ subsection B of Section 153 of Title 42 of the
2 Oklahoma Statutes;

3 ~~78.~~ 79. Providing any false statement of a material fact in an
4 application for a certificate of title, as provided for in Section
5 4-108 of Title 47 of the Oklahoma Statutes;

6 ~~79.~~ 80. Altering or forging any certificate of title issued by
7 the Oklahoma Tax Commission, as provided for in Section 4-109 of
8 Title 47 of the Oklahoma Statutes;

9 ~~80. Perjury by making any false affidavit, as provided for in~~
10 ~~Section 6-302 of Title 47 of the Oklahoma Statutes;~~

11 81. Creating, manufacturing, issuing, or selling security
12 verification forms, as provided for in subsection B of Section 7-612
13 of Title 47 of the Oklahoma Statutes;

14 82. Committing a subsequent violation of driving under the
15 influence of alcohol or other intoxicating substance within ten (10)
16 years of being convicted of driving under the influence of alcohol
17 or other intoxicating substance, causing a personal injury accident
18 while driving under the influence of alcohol or other intoxicating
19 substance, or driving under the influence of alcohol or other
20 intoxicating substance while transporting a child, as provided for
21 in paragraph 2 of subsection C of Section 11-902 of Title 47 of the
22 Oklahoma Statutes;

23 83. Operating a vehicle without a valid driver license for the
24 class of vehicle being operated and causing an accident resulting in

1 great bodily injury to another person, as provided for in subsection
2 B of Section 11-905 of Title 47 of the Oklahoma Statutes;

3 84. Operating a crusher without a proper license and receiving,
4 obtaining, or possessing any vehicle or property known to be stolen,
5 as provided for in paragraph 2 of subsection B of Section 592.9 of
6 Title 47 of the Oklahoma Statutes;

7 85. Selling a vehicle or other property to a crusher using
8 false or altered identification or making a false declaration of
9 ownership or lien status, as provided for in paragraph 3 of
10 subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

11 86. Owning, operating, or conducting a chop shop, transporting
12 any motor vehicle or parts to or from a chop shop, or selling,
13 transferring, purchasing, or receiving any motor vehicle or parts to
14 or from a chop shop, as provided for in subsection A of Section 1503
15 of Title 47 of the Oklahoma Statutes;

16 87. Altering, counterfeiting, defacing, destroying, disguising,
17 falsifying, forging, obliterating, or knowingly removing a vehicle
18 identification number, as provided for in subsection B of Section
19 1503 of Title 47 of the Oklahoma Statutes;

20 88. Perjury by a public officer or employee who states as true
21 any material matter knowing it to be false, as provided for in
22 Section 36.5 of Title 51 of the Oklahoma Statutes;

23 89. Advocating by teaching, justifying, or becoming a member of
24 or affiliated with the Communist Party or with any other party or

1 organization that advocates for the revolution, sedition, treason,
2 or overthrow of the government of the United States or the State of
3 Oklahoma by a public officer or employee, as provided for in Section
4 36.6 of Title 51 of the Oklahoma Statutes;

5 90. Perjury by verifying under oath any report, map, or drawing
6 required to be filed with the Corporation Commission knowing that
7 such material is false, as provided for in Section 109 of Title 52
8 of the Oklahoma Statutes;

9 91. Asking, receiving, or agreeing to receive any gift or
10 gratuity by any member of the Corporation Commission, as provided
11 for in Section 118 of Title 52 of the Oklahoma Statutes;

12 92. Burglary in the first degree by a bail enforcer by breaking
13 into and entering the dwelling house of any defendant or third party
14 for purposes of recovery or attempted recovery of a defendant, as
15 provided for in subsection A of Section 1350.6 of Title 59 of the
16 Oklahoma Statutes;

17 93. Distributing, dispensing, transporting, or possessing a
18 controlled dangerous substance or soliciting a person less than
19 eighteen (18) years of age to cultivate, distribute, or dispense a
20 controlled dangerous substance, as provided for in paragraph 1 of
21 subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

22 94. Creating, distributing, transporting, or possessing a
23 counterfeit controlled dangerous substance, as provided for in
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1 paragraph 2 of subsection A of Section 2-401 of Title 63 of the
2 Oklahoma Statutes;

3 95. Manufacturing or distributing a controlled substance or
4 synthetic controlled substance, as provided for in paragraph 1 of
5 subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

6 96. Larceny, burglary, or theft of a controlled dangerous
7 substance, as provided for in subsection A of Section 2-403 of Title
8 63 of the Oklahoma Statutes;

9 97. Obtaining or attempting to obtain any controlled dangerous
10 substance by fraud, deceit, misrepresentation, or subterfuge, as
11 provided for in paragraph 1 of subsection A of Section 2-407 of
12 Title 63 of the Oklahoma Statutes;

13 98. Obtaining or attempting to obtain any controlled dangerous
14 substance by forgery of, alteration of, or changing any information
15 on a prescription or any written order, as provided for in paragraph
16 2 of subsection A of Section 2-407 of Title 63 of the Oklahoma
17 Statutes;

18 99. Obtaining or attempting to obtain any controlled dangerous
19 substance by the concealment of a material fact, as provided for in
20 paragraph 3 of subsection A of Section 2-407 of Title 63 of the
21 Oklahoma Statutes;

22 100. Obtaining or attempting to obtain any controlled dangerous
23 substance by the use of a false name or false address, as provided
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1 for in paragraph 4 of subsection A of Section 2-407 of Title 63 of
2 the Oklahoma Statutes;

3 101. Obtaining or attempting to obtain any controlled dangerous
4 substance by failing to disclose the receipt or prescription of a
5 controlled dangerous substance of the same or similar therapeutic
6 use from another practitioner, as provided for in paragraph 5 of
7 subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

8 102. Manufacturing, creating, delivering, or possessing an
9 original prescription form or counterfeit prescription form, as
10 provided for in subsection B of Section 2-407 of Title 63 of the
11 Oklahoma Statutes;

12 103. Receiving or acquiring proceeds known to be derived from
13 any violation of the Uniform Controlled Dangerous Substances Act, as
14 provided for in subsection A of Section 2-503.1 of Title 63 of the
15 Oklahoma Statutes;

16 104. Knowingly or intentionally giving, selling, transferring,
17 trading, investing, concealing, transporting, or maintaining an
18 interest in anything of value which is intended to be used for
19 committing a violation of the Uniform Controlled Dangerous
20 Substances Act, as provided for in subsection B of Section 2-503.1
21 of Title 63 of the Oklahoma Statutes;

22 105. Directing, planning, organizing, initiating, financing,
23 managing, supervising, or facilitating the transportation or
24 transfer of proceeds known to be derived from a violation of the

1 Uniform Controlled Dangerous Substances Act, as provided for in
2 subsection C of Section 2-503.1 of Title 63 of the Oklahoma
3 Statutes;

4 106. Conducting a financial transaction involving proceeds
5 derived from a violation of the Uniform Controlled Dangerous
6 Substances Act for the purpose of concealing or disguising the
7 nature, location, source, ownership, or control of the proceeds
8 known to be derived from a violation of the Uniform Controlled
9 Dangerous Substances Act, as provided for in subsection D of Section
10 2-503.1 of Title 63 of the Oklahoma Statutes;

11 107. Encouraging, facilitating, or allowing access to any money
12 transmitter equipment for unlawful purposes, as provided for in
13 subsection B of Section 2-503.1d of Title 63 of the Oklahoma
14 Statutes;

15 108. Using a money services business or electronic funds
16 transfer network to facilitate any violation of the Uniform
17 Controlled Dangerous Substances Act, as provided for in Section 2-
18 503.1e of Title 63 of the Oklahoma Statutes;

19 109. Structuring, assisting, or attempting to structure any
20 unlawful transaction with one or more financial or nonfinancial
21 trades or businesses, as provided for in Section 2-503.1g of Title
22 63 of the Oklahoma Statutes;

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1 110. Using explosive agent to kill, injure, or intimidate or to
2 damage property, as provided for in subsection B of Section 124.8 of
3 Title 63 of the Oklahoma Statutes;

4 111. Altering, counterfeiting, defacing, destroying,
5 disguising, falsifying, forging, obliterating, or removing a hull
6 identification number of a vessel or motor, as provided for in
7 subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

8 ~~111. Commit or attempt~~

9 112. Committing or attempting to commit certain violations of
10 the Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
11 provided for in subsection D of Section 4253 of Title 63 of the
12 Oklahoma Statutes;

13 ~~112.~~ 113. Giving a false or bogus check in payment or
14 remittance of taxes, fees, penalties, or interest levied pursuant to
15 any state tax laws and the value of the false or bogus check is Five
16 Hundred Dollars (\$500.00) or more, as provided for in Section 218.1
17 of Title 68 of the Oklahoma Statutes;

18 ~~113.~~ 114. Perjury by providing false answers to any questions
19 from the Oklahoma Tax Commission or making or presenting any false
20 affidavit to be filed with the Oklahoma Tax Commission, as provided
21 for in Section 244 of Title 68 of the Oklahoma Statutes;

22 ~~114.~~ 115. Perjury by verifying by oath, affirmation, or
23 declaration, any false report or false return that is to be filed
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1 with the Oklahoma Tax Commission, as provided for in Section 246 of
2 Title 68 of the Oklahoma Statutes;

3 ~~115.~~ 116. Making or manufacturing any tax stamp or falsely or
4 fraudulently forging, counterfeiting, reproducing, or possessing any
5 tax stamp, as provided for in subsection ~~(a)~~ A of Section 317 of
6 Title 68 of the Oklahoma Statutes;

7 ~~116.~~ 117. Offering or selling unregistered securities, as
8 provided for in Section 1-301 of Title 71 of the Oklahoma Statutes;

9 ~~117.~~ 118. Issuing investment certificates when insolvent by an
10 investment certificate issuer, as provided for in paragraph 1 of
11 subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

12 ~~118.~~ 119. Transacting business as a broker-dealer without being
13 registered as a broker-dealer, as provided for in subsection A of
14 Section 1-401 of Title 71 of the Oklahoma Statutes;

15 ~~119.~~ 120. Employing or associating with an individual for
16 security transaction purposes when the registration of the
17 individual is suspended or revoked or the individual is barred from
18 employment or association with a broker-dealer, as provided for in
19 subsection C of Section 1-401 of Title 71 of the Oklahoma Statutes;

20 ~~120.~~ 121. Transacting business as an agent without being
21 registered as an agent, as provided for in subsection A of Section
22 1-402 of Title 71 of the Oklahoma Statutes;

23 ~~121.~~ 122. Employing or associating with an agent who transacts
24 business on behalf of broker-dealers when the agent is not

1 registered, as provided for in subsection D of Section 1-402 of
2 Title 71 of the Oklahoma Statutes;

3 ~~122.~~ 123. Conducting business on behalf of a broker-dealer when
4 the registration of the agent is suspended or revoked or the
5 individual is barred from employment or association with a broker-
6 dealer, as provided for in subsection F of Section 1-402 of Title 71
7 of the Oklahoma Statutes;

8 ~~123.~~ 124. Transacting business as an investment adviser without
9 being registered as an investment adviser, as provided for in
10 subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;

11 ~~124.~~ 125. Employing or associating with an individual to engage
12 in providing investment advice when the registration of the
13 individual is suspended or revoked or the individual is barred from
14 employment or association with an investment adviser, as provided
15 for in subsection C of Section 1-403 of Title 71 of the Oklahoma
16 Statutes;

17 ~~125.~~ 126. Employing or associating with an individual required
18 to be registered as an investment adviser representative who is not
19 registered as an investment adviser representative, as provided for
20 in subsection D of Section 1-403 of Title 71 of the Oklahoma
21 Statutes;

22 ~~126.~~ 127. Transacting business as an investment adviser
23 representative without being registered as an investment adviser
24

1 representative, as provided for in subsection A of Section 1-404 of
2 Title 71 of the Oklahoma Statutes;

3 ~~127.~~ 128. Conducting business on behalf of an investment
4 adviser or ~~federal-covered~~ federal covered investment adviser when
5 the registration of the investment adviser representative is
6 suspended or revoked or the individual is barred from employment or
7 association with an investment adviser or ~~federal-covered~~ federal
8 covered investment adviser, as provided for in subsection E of
9 Section 1-404 of Title 71 of the Oklahoma Statutes;

10 ~~128.~~ 129. Employing a device, scheme, or artifice to defraud
11 another when offering, selling, or purchasing a security, as
12 provided for in paragraph 1 of Section 1-501 of Title 71 of the
13 Oklahoma Statutes;

14 ~~129.~~ 130. Making an untrue statement of a material fact or
15 omitting a material fact when offering, selling, or purchasing a
16 security, as provided for in paragraph 2 of Section 1-501 of Title
17 71 of the Oklahoma Statutes;

18 ~~130.~~ 131. Engaging in an act, practice, or course of business
19 that operates as a fraud or deceit upon another person when
20 offering, selling, or purchasing a security, as provided for in
21 paragraph 3 of Section 1-501 of Title 71 of the Oklahoma Statutes;

22 ~~131.~~ 132. Employing a device, scheme, or artifice to defraud
23 another when advising others for compensation as to the value of
24

1 securities, as provided for in paragraph 1 of subsection A of
2 Section 1-502 of Title 71 of the Oklahoma Statutes;

3 ~~132.~~ 133. Making an untrue statement of a material fact or
4 omitting a material fact when advising others for compensation as to
5 the value of securities, as provided for in paragraph 2 of
6 subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

7 ~~133.~~ 134. Engaging in an act, practice, or course of business
8 that operates as a fraud or deceit upon another person when advising
9 others for compensation as to the value of securities, as provided
10 for in paragraph 3 of subsection A of Section 1-502 of Title 71 of
11 the Oklahoma Statutes;

12 ~~134.~~ 135. Making false or misleading statements in a record, as
13 provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

14 ~~135.~~ 136. Making or causing to be made to a purchaser,
15 customer, client, or prospective customer or client, an inconsistent
16 representation, as provided for in Section 1-506 of Title 71 of the
17 Oklahoma Statutes;

18 ~~136.~~ 137. Willfully violating certain provisions of the
19 Oklahoma Uniform Securities Act of 2004, as provided for in
20 subsection A of Section 1-508 of Title 71 of the Oklahoma Statutes;

21 ~~137.~~ 138. Offering or selling any business opportunity without
22 being registered under the Oklahoma Business Opportunity Sales Act,
23 as provided for in Section 806 of Title 71 of the Oklahoma Statutes;

1 ~~138.~~ 139. Offering or selling any business opportunity without
2 a written disclosure being filed, as provided for in subsection A of
3 Section 808 of Title 71 of the Oklahoma Statutes;

4 ~~139.~~ 140. Offering or selling any business opportunity without
5 a business opportunity contract or agreement, as provided for in
6 subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

7 ~~140.~~ 141. Making or using any specific representations from the
8 Oklahoma Business Opportunity Sales Act without having a minimum net
9 worth of Fifty Thousand Dollars (\$50,000.00), as provided for in
10 Section 811 of Title 71 of the Oklahoma Statutes;

11 ~~141.~~ 142. Using information filed with or obtained by the
12 Administrator of the Oklahoma Department of Securities that is not
13 public for the personal benefit of the Administrator or any officers
14 or employees of the Administrator, as provided for in subsection B
15 of Section 812 of Title 71 of the Oklahoma Statutes;

16 ~~142.~~ 143. Employing any device, scheme, or artifice to defraud
17 in connection with offering or selling any business opportunity, as
18 provided for in paragraph 1 of Section 819 of Title 71 of the
19 Oklahoma Statutes;

20 ~~143.~~ 144. Making any untrue statement of a material fact or
21 omitting a material fact in connection with offering or selling any
22 business opportunity, as provided for in paragraph 2 of Section 819
23 of Title 71 of the Oklahoma Statutes;

1 ~~144.~~ 145. Engaging in any act, practice, or course of business
2 which operates as a fraud or deceit in connection with offering or
3 selling any business opportunity, as provided for in paragraph 3 of
4 Section 819 of Title 71 of the Oklahoma Statutes;

5 ~~145.~~ 146. Making or causing to be made any false or misleading
6 statements or omitting to state a material fact necessary in any
7 document filed with the Administrator of the Oklahoma Department of
8 Securities or in any proceeding pursuant to the Oklahoma Business
9 Opportunity Sales Act, as provided for in Section 820 of Title 71 of
10 the Oklahoma Statutes;

11 ~~146.~~ 147. Filing any application for registration that is
12 false, incomplete, or misleading, as provided for in Section 821 of
13 Title 71 of the Oklahoma Statutes;

14 ~~147.~~ 148. Publishing, circulating, or using any advertising
15 that contains untrue statements of material facts or omits to state
16 material facts necessary, as provided for in Section 822 of Title 71
17 of the Oklahoma Statutes;

18 ~~148.~~ 149. Taking or receiving any rebate, percentage of
19 contract, money, or any other thing of value by an officer of the
20 Office of Management and Enterprise Services from any person, firm,
21 or corporation, as provided for in Section 71 of Title 74 of the
22 Oklahoma Statutes;

1 ~~149.~~ 150. Monopolizing, attempting to monopolize, or conspiring
2 to monopolize any part of trade or commerce, as provided for in
3 subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

4 ~~150.~~ 151. Discrimination in price between different purchasers
5 of commodities by any person engaged in commerce, as provided for in
6 Section 204 of Title 79 of the Oklahoma Statutes;

7 ~~151.~~ 152. Violation of the Oklahoma Antitrust Reform Act, as
8 provided for in Section 206 of Title 79 of the Oklahoma Statutes;
9 and

10 ~~152.~~ 153. Having any interest, directly or indirectly, in any
11 contract for the purchase of property or construction of work by or
12 for the Grand River Dam Authority by a director, officer, agent, or
13 employee, as provided for in Section 867 of Title 82 of the Oklahoma
14 Statutes;~~and~~

15 ~~153. Using explosive agent to kill, injure, or intimidate or to~~
16 ~~damage property, as provided for in subsection B of Section 124.8 of~~
17 ~~Title 63 of the Oklahoma Statutes.~~

18 B. Any person convicted of a Class C2 criminal offense set
19 forth in this section shall be punished by imprisonment in the
20 custody of the Department of Corrections for a term ~~of~~ not more than
21 seven (7) years and shall serve at least twenty percent (20%) of the
22 sentence imposed before release from custody including release to
23 electronic monitoring pursuant to Section 510.9 of Title 57 of the
24 Oklahoma Statutes.

1 C. 1. Every person who, having been previously convicted of
2 one or two Class C or Class D criminal offenses, commits a Class C2
3 criminal offense shall, upon conviction, be punished by imprisonment
4 in the custody of the Department of Corrections for a term ~~of~~ not
5 less than two (2) years nor more than ten (10) years and shall serve
6 at least twenty percent (20%) of the sentence imposed before release
7 from custody including release to electronic monitoring pursuant to
8 Section 510.9 of Title 57 of the Oklahoma Statutes.

9 2. Every person who, having been previously convicted of three
10 Class C or Class D criminal offenses, or one or more Class Y, Class
11 A, or Class B criminal offenses, commits a Class C2 criminal offense
12 shall, upon conviction, be punished by imprisonment in the custody
13 of the Department of Corrections for a term ~~of~~ not less than two (2)
14 years nor more than twelve (12) years and shall serve at least forty
15 percent (40%) of the sentence imposed before release from custody
16 including release to electronic monitoring pursuant to Section 510.9
17 of Title 57 of the Oklahoma Statutes.

18 D. Unless specifically exempted pursuant to subsection E of
19 this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this
20 title shall not apply to Class C2 criminal offenses.

21 E. 1. The criminal offenses listed in paragraphs 1, 2, 52, 53,
22 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section
23 shall be exempt from the penalty provisions provided for in
24 subsections B and C of this section. Persons convicted of the

1 criminal offenses provided for in paragraphs 1, 2, 52, 53, 54, 55,
2 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be
3 punished in accordance with the corresponding penalties provided for
4 in the Oklahoma Statutes including Section 51.1 of ~~Title 21 of the~~
5 ~~Oklahoma Statutes~~ this title.

6 2. The criminal offense listed in paragraph 64 of subsection A
7 of this section shall be exempt from the penalty provision provided
8 for in subsection B of this section. Persons convicted of the
9 criminal offense provided for in paragraph 64 of subsection A of
10 this section shall be punished in accordance with the corresponding
11 penalties as provided for in the Oklahoma Statutes including Section
12 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title. The
13 provisions of subsection C of this section still ~~applies~~ apply to
14 the criminal offense listed in paragraph 64 of subsection A of this
15 section.

16 F. All Class C2 criminal offenses shall be punishable by the
17 corresponding fines as provided for in the Oklahoma Statutes.

18 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1727, as
19 amended by Section 455, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
20 2025, Section 1727), is amended to read as follows:

21 Section 1727. A. Any person who ~~shall enter upon~~ enters any
22 premises, easement, or right-of-way with intent to steal or remove
23 without the consent of the owner, or with intent to aid or assist in
24 stealing or removing without the consent of the owner, any copper

1 wire, copper cable, ~~or~~ copper tubing from and off of any
2 appurtenance, or any item that is known or reasonably should be
3 known as ordinarily used by, belonging to, or identified with
4 markings indicating ownership by a telephone, telegraph, Internet,
5 broadcast, or wireless communication company on such premises,
6 easement, or right-of-way shall, upon conviction, be guilty of a
7 Class D1 felony offense ~~and upon conviction shall be punished~~
8 punishable by confinement imprisonment as provided for in
9 subsections B through ~~F~~ E of Section 20N of this title, or ~~shall be~~
10 ~~fined~~ by a fine not less than One Hundred Dollars (\$100.00) nor more
11 than Five Hundred Dollars (\$500.00), or by both such ~~fine~~
12 imprisonment and imprisonment fine.

13 B. Any person who enters any premises, easement, or right-of-
14 way with intent to steal or remove without the consent of the owner,
15 or with intent to aid or assist in stealing or removing without the
16 consent of the owner, any copper wire, copper cable, or copper
17 tubing from and off of any appurtenance, or any item that is known
18 or reasonably should be known as ordinarily used by, belonging to,
19 or identified with markings indicating ownership by a telephone,
20 telegraph, Internet, broadcast, or wireless communication company on
21 such premises, easement, or right-of-way resulting in damages to the
22 appurtenance, premises, easement, or right-of-way of One Hundred
23 Thousand Dollars (\$100,000.00) or more shall, upon conviction, be
24 guilty of a Class C2 felony offense punishable by imprisonment as

1 provided for in subsections B through E of Section 20M of this
2 title, or by a fine not to exceed Fifty Thousand Dollars
3 (\$50,000.00), or by both such imprisonment and fine.

4 SECTION 3. This act shall become effective November 1, 2026.

5 Passed the Senate the 23rd day of March, 2026.

6
7 _____
8 Presiding Officer of the Senate

9 Passed the House of Representatives the ____ day of _____,
10 2026.

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12 _____
13 Presiding Officer of the House
14 of Representatives
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